



CHAPTER xviii.

An Act for conferring further powers upon the Great Eastern Railway Company for authorising the abandonment of certain works for extending the time limited by former Acts for the completion of works and the purchase of lands and for other purposes.

A.D. 1906.

[29th May 1906.]

WHEREAS it is expedient that the Great Eastern Railway Company (in this Act called "the Company") be authorised to construct the pier in connexion with their Kelvedon Tiptree and Tollesbury Light Railway and to purchase the additional lands herein-after described and to exercise the other powers in this Act specified :

And whereas by the Great Eastern Railway (General Powers) Act 1899 (herein-after called "the Act of 1899") the Company were authorised to make execute and maintain among other works—

A widening (No. 2) of the Northern and Eastern Railway commencing in the parish of Walthamstow in the county of Essex and terminating in the parish of Hoddesdon (Urban) in the county of Hertford:

And whereas in connexion with the said widening (No. 2) the Company were empowered by section 4 of the Great Eastern Railway (General Powers) Act 1900 (herein-after called "the Act of 1900") to make the alteration in the parish of Cheshunt of the levels of the public road called Windmill Lane and other works described in subsection (g) of that section:

And whereas the periods respectively limited for the purchase of lands for and for the completion of the said widening (No. 2)

[Price 1s. 6d.]

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A.D. 1906. and other works herein-before referred to have from time to time been extended but none of the works in connexion with the portion of the said widening between the point in the parish of Edmonton shown on the deposited plans referred to in the Act of 1899 as indicating three miles and four furlongs from the commencement of the said widening and its termination (being the whole of the said widening which would have been situate in the urban districts of Enfield and Cheshunt and the parishes of Wormley Broxbourne and Hoddesdon (Urban)) have been constructed :

And whereas the widening of the said Northern and Eastern Railway between the aforesaid point in the parish of Edmonton and the termination of the said widening as above described is no longer required and it is expedient that the same be abandoned :

And whereas it is expedient that the respective times limited for the completion by the Company of certain authorised works and for the compulsory purchase by them of certain lands hereinafter more particularly referred to be extended as by this Act provided :

And whereas plans and sections showing the line situation and levels of the works by this Act authorised to be constructed and plans of the lands authorised to be taken acquired and held under the powers of this Act and books of reference to such plans respectively containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands respectively were duly deposited as follows (that is to say) :—

As regards the pier and lands in the county of Essex with the clerk of the peace for that county ;

As regards lands in the county of Suffolk with the clerk of the peace for the Eastern Division of that county ;
and

As regards lands and works in the county of Cambridge with the clerk of the peace for that county ;

and the said plans sections and books of reference respectively are in this Act referred to as the deposited plans sections and books of reference :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal A.D. 1906.
and Commons in this present Parliament assembled and by the —
authority of the same as follows (that is to say):—

1. This Act may be cited as the Great Eastern Railway Short title.
Act 1906.

2. The following enactments (as far as they are applicable Incorpora-
for the purposes of and are not inconsistent with or expressly tion of gene-
varied by this Act) are hereby incorporated with and shall be part ral enact-
of this Act (that is to say):— ments.

The Lands Clauses Acts;

Part II. of the Railways Clauses Act 1863 (relating to
extension of time); and

The Harbours Docks and Piers Clauses Act 1847 (with the
exceptions of section 12 and unless the Board of Trade
shall otherwise require sections 16 to 19).

3. In this Act the several words and expressions to which Interpreta-
meanings are assigned by the Acts wholly or partially incorporated tion.
herewith shall have the same respective meanings unless there be
something in the subject or context repugnant to such construction
and the expression "the pier" means the pier by this Act
authorised.

4. Subject to the provisions of this Act the Company may Power to
make execute and maintain in the line or situation and within the construct
limits of lateral deviation shown on the deposited plans and pier.
according to the levels shown on the deposited sections the pier
described in this section with all necessary and convenient sidings
approaches buildings roads quays wharves landing places ware-
houses mooring-buoys stages cranes lifts machinery appliances and
other works and conveniences connected therewith and may enter
upon take and use such of the lands delineated on the deposited
plans and described in the deposited books of reference as may be
required for those purposes.

The pier herein-before referred to and authorised by this
Act is—

A pier to be situate on the bank bed and foreshore of the
River Blackwater in the parish of Tollesbury in the rural
district of Maldon in the county of Essex commencing
at a point 1 chain and 30 links or thereabouts measured in
a south-easterly direction from the buffer-stop at the

A.D. 1906.

termination of the Kelvedon Tiptree and Tollesbury Light Railway of the Company and terminating in the said river at a point 28 chains or thereabouts measured in a south-easterly direction from the said buffer-stop:

The pier will consist for one hundred yards of its length of solid work and for the remainder of its length of open work.

Limits of deviation.

5. In constructing the pier the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of the pier as shown on the deposited sections to any extent not exceeding five feet upwards and ten feet downwards. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Period for completion of works.

6. If the pier be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

Power to dredge.

7. Subject to the provisions of this Act the Company may from time to time dredge deepen scour and improve and remove any rocks banks sand mud or shingle from the bed and channel of the River Blackwater on the site of or adjoining or near to the pier and the approaches thereto or for the purpose of obtaining preserving or improving the access thereto to such extent as the Company may deem it necessary or expedient to do in that behalf and may appropriate use and dispose of as they think fit the soil and materials so dredged or removed. Provided that all materials excavated or dredged under the provisions of this section if deposited below high-water mark shall be deposited in such position and under such restrictions as may be fixed by the Board of Trade.

For protection of Tollesbury and Merses (Blackwater) Oyster Fishery Company Limited.

8. The following provisions for the protection of the Tollesbury and Mersea (Blackwater) Oyster Fishery Company Limited (in this section referred to as "the fishery company") shall unless otherwise agreed in writing under the respective common seals of the Company and the fishery company apply and have effect:—

- (1) In constructing and executing the pier and other works in connexion therewith by this Act authorised (in this section referred to as "the said works") so far as they

affect the fishery or layings of the fishery company in or near the River Blackwater the Company shall execute the same according to plans and sections which shall be previously submitted to and approved in writing by or on behalf of the fishery company and the Company shall not commence the execution of the said works until such plans and sections have been so submitted and approved. Provided always that if the fishery company shall for the period of thirty days neglect or refuse to approve such plans and sections or shall disapprove the same and in case of the Company and the fishery company failing to agree or of any difference arising between them then the said works shall be executed according to plans and sections to be submitted to and approved of by an engineer to be agreed on or in default of agreement to be appointed at the request of either the Company or the fishery company by the President of the Institution of Civil Engineers: A.D. 1906.

- (2) Before commencing any of the said works the Company shall give to the fishery company fourteen days notice thereof in writing and shall also during the execution thereof afford to the fishery company or to any engineer or surveyor on their behalf all reasonable facilities for inspecting the same:
- (3) The Company shall not dredge or deepen any part of the bed and foreshore of the River Blackwater except such parts thereof as shall be necessary for the construction and user of the said works. Provided always that the Company shall give to the fishery company twenty-eight days previous notice in writing of their intention so to dredge as aforesaid and such dredging shall be carried out under the superintendence (if such superintendence be given) and to the reasonable satisfaction of the fishery company and the reasonable cost of such superintendence shall be borne and paid by the Company:
- (4) All soil and materials which in the course of the dredging and deepening of the River Blackwater by the Company shall be taken from any part of the River Blackwater in which the fishery company have any estate or interest shall if so required by the

A.D. 1906.

fishery company be delivered by the Company at their expense at such place or places as the fishery company shall direct not being more than one mile from the place where such dredging and deepening shall take place. Provided that if within seven days after notice in writing shall have been given to the fishery company by the Company of their intention to execute the said works no directions for disposal of such soil and materials as aforesaid shall be given as herein-before provided the Company shall be at liberty without any payment to appropriate use and dispose of the same as they shall think fit:

(5) The Company shall construct the said works and shall work their undertaking in all respects so as to cause as little damage as may be to the said fishery or layings and the working thereof respectively and shall not allow any sewage matter to be discharged from the pier into the said river:

(6) The Company shall make full compensation to the fishery company for any damage to or interference with or any injurious affection whatsoever of the said fishery or layings which may be caused by the construction maintenance or abatement of the said works or any act or default of the Company their contractors servants or agents during the construction of the said works or which may arise from the dredging operations of the Company under the powers of this Act such compensation in case of dispute to be settled in manner provided by the Lands Clauses Acts.

Works below high-water mark not to be commenced without consent of Board of Trade.

9. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like

consents or approvals If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1906.
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10. The Company shall at the outer extremity of the pier below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the corporation of the Trinity House Deptford Strond shall from time to time direct. If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Company to exhibit lights.

11. The Company shall at or near the pier below high-water mark during the whole time of constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Lights on works during construction.

12. If any work constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal waters is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Abatement of works abandoned or decayed.

13. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal waters or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Survey of works by Board of Trade.

A.D. 1906.

Provision
against dan-
ger to navi-
gation.

14. In case of injury to or destruction or decay of the pier or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the corporation of the Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Crown
rights.

15. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Any land
reclaimed by
works not to
be taken
without con-
sent of Board
of Trade.

16. If in the course or by means of the construction of the pier any part of the shores or bed of the sea in the vicinity of the pier belonging to His Majesty shall be inned gained or reclaimed from the water the Company shall not have or exercise any right upon the same or in respect thereof and shall not enter upon take use or interfere with the land so inned gained or reclaimed for any purpose whatsoever without the consent in writing of the Board of Trade on behalf of His Majesty but such innning gaining or reclamation shall enure absolutely for the benefit of the King's Majesty.

Limits of
pier.

17. The limits of the pier and the limits within which the powers of the piermaster for the regulation of the pier may be exercised shall comprise the pier and the area below high-water mark lying within one hundred and twenty yards of any part of the pier.

Penalty for
obstructing
works.

18. Every person who wilfully obstructs any person acting under the authority of the Company in setting out the line of the pier or works connected therewith or who pulls up or removes any

poles or stakes driven into the ground for the purpose of setting out the line of the works shall for every such offence be liable to a penalty not exceeding five pounds. A.D. 1906.
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19. The Company may demand and receive for every person who shall use or land from or embark on any vessel at the pier and in respect of passengers' luggage and bicycles tricycles or other similar vehicles landed shipped or transhipped at the pier and for the use of warehouses any sums not exceeding the several rates and sums respectively specified in the schedule to this Act. Rates on persons &c.

20. The Company may subject to the provisions of this Act demand and take in respect of vessels using or frequenting the pier any sums not exceeding the several rates and sums specified in the schedule to this Act and every such sum shall be paid by the master of the vessel and in the case of fishing boats steamers and other vessels trading to and from or frequently using the pier the Company may agree to charge such annual or other sum as they may think reasonable by way of compounding for the rates or sums payable in respect of any such vessel but so that no preference be in any case given to any person. Rates on vessels.

21. The Company may demand and take in respect of the shipment unshipment transshipment reception or delivery from at or upon the pier of any of the goods and minerals included in each class in the classification so far as applicable of goods and minerals annexed to the schedule to the Great Eastern Railway Company (Rates and Charges) Order 1891 which Order is scheduled to and confirmed by the Great Eastern Railway Company (Rates and Charges) Order Confirmation Act 1891 any rates or charges not exceeding those respectively specified in the schedule to this Act in respect of the class in which such goods and minerals are included and in respect of the shipment unshipment transshipment reception or delivery from at or upon the pier of the animals or things described in Parts II. III. and IV. so far as applicable of the schedule to the said Order any rates or charges not exceeding those respectively specified in the schedule to this Act in respect of the description in such Part of such animals or things and every such rate shall be paid by the owner or consignee of such goods and minerals animals and things and sections 13 to 18 and 20 of the schedule to the said Order shall so far as applicable extend and apply to the fixing of the rates and charges by this section authorised. Rates on goods.

A.D. 1906.

Rates for
cranes &c.

22. The Company may levy for and in respect of the use of cranes at the pier and for weighing and for the use of machinery and barges the rates respectively specified in the schedule to this Act and all such rates shall be paid by the owners or persons in charge of the goods lifted or weighed or by the owner agent master or other person in charge of the vessels using the said cranes machinery or barges or requiring the services specified in the said schedule.

Company
may fix
ballast rates.

23. All ballast to be discharged or removed from or put into any vessel using the pier and all services in relation to the stowing and trimming thereof shall if and when the Company so determine be discharged or removed or performed by the Company and the Company may fix such reasonable rates as they may think proper not exceeding those mentioned in the schedule to this Act to be paid for the supply and removal of ballast from and into vessels and such ballast rates shall be payable by the master or owner of every vessel which discharges or loads any ballast at the pier to the Company in respect of the vessels into or out of which such ballast is loaded or discharged and shall be recoverable by the Company as other rates in respect of vessels are by this Act recoverable and no persons other than the Company shall supply ballast to any vessel using the pier unless with the permission of the Company.

Company
may supply
water.

24. The Company may supply water to vessels at the pier and may charge for such supply any sum not exceeding that mentioned in the schedule to this Act.

Further rates
for vessels
remaining at
pier longer
than twenty-
four hours.

25. If any vessel using the pier whether the same vessel shall previously have paid or been liable to pay rates or not shall remain at the pier for any longer space of time than twenty-four hours the Company may demand for every such vessel a further rate of twopence per ton for every three hours and so on in proportion for every subsequent three hours during which any such vessel shall remain as aforesaid beyond the said period of twenty-four hours in addition to the rates payable by virtue of this Act Provided always that such additional rates shall not be payable for any vessel which shall have been detained by stress of weather.

Charges for
services.

26. The Company may demand and take for all services rendered by them in respect of the shipping transhipping and unshipping handling weighing watching and protecting animals and goods and for preparing and furnishing certificates of weight

and for any other service with respect to animals goods minerals and things shipped transhipped unshipped warehoused or deposited by or with the Company for which rates or charges are not specifically fixed by this Act such sums as they think fit or as may be agreed upon between the Company and the person desiring to avail himself of such services and the Company may render any such services when they think proper Provided that such charges shall at all times be made equally to all persons in respect of the same description of services and accommodations. A.D. 1906.
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27. If it is at any time certified in writing under the hand of an officer to be appointed for the purpose by the Board of Trade but to be paid by the Company that the works authorised by this Act have been so far completed as to afford increased accommodation for the landing and embarking or the shipping and unshipping of passengers animals or goods by means of those works the Company may notwithstanding the twenty-fifth section of the Harbours Docks and Piers Clauses Act 1847 and although the whole of the works authorised by this Act have not then been completed demand recover and receive such of the rates or such proportion of all or any of the rates specified in the schedule to this Act as will in the opinion of the Board of Trade be commensurate with the increased accommodation afforded. Rates may be levied though works not completed.

28. The Company shall have the appointment of meters and weighers on and in connexion with the pier. Appointment of meters and weighers.

29. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the pier. Life-saving apparatus may be attached to pier.

30. The Company shall at all times keep at the outer extremity of the pier and at reasonable distances along the pier and in accordance with any requirements which may be made by the Board of Trade a sufficient number of lifebuoys and life-lines in good order and fit and ready for use. Lifebuoys to be kept.

31. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving Lifeboat crew exempt from tolls.

A.D. 1906. — life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the premises and works belonging to the Company.

General provisions as to byelaws.

32. All byelaws made by the Company under the provisions of the Harbours Docks and Piers Clauses Act 1847 in relation to the pier by this Act authorised shall be confirmed by the Board of Trade and shall require no other confirmation.

Assessment of pier to local rates.

33. The pier shall not during a period of ten years from the date of the completion of the pier be assessed to any poor rates general district rates or other local rates at a higher value than that at which the land occupied thereby would have been assessed if it had remained in the condition in which it was immediately before it was acquired for the purpose of the pier:

Provided that if the Board of Trade extend the period mentioned in clause 41 of the Kelvedon Tiptree and Tollesbury Light Railway Order 1901 they shall have power to extend the said period of ten years mentioned in this section for such period or periods as the said Board think fit.

Power to Company to acquire additional lands.

34. The Company in addition to the other lands which they are by this Act authorised to acquire may enter upon and take compulsorily or by agreement and may appropriate and use for the purposes of extending or affording access to their stations sidings warehouses buildings wharves depôts and other accommodation and for the general purposes of their undertaking all or any of the lands herein-after described and delineated on the deposited plans and described in the deposited books of reference and any estates or interests in any such lands and may hold and use for all or any of the above-mentioned purposes such of the said lands as have already been purchased or acquired by them Provided that the said lands so already purchased or acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The lands above referred to and by this section authorised to be entered upon and taken appropriated and used are as follows:—

In the county of Essex—

(A) A strip of land in the parish of Littlebury in the rural district of Saffron Walden adjoining and on the north-east side of the Company's Cambridge main line:

(B) Lands in the parish of Leyton in the urban district of Leyton adjoining and on the southern and eastern sides of Quartermile Lane Leyton: A.D. 1906.

(C) Lands in the parish of Tolleshunt Knights in the rural district of Maldon forming part of the property numbered on the Ordnance map (scale $\frac{1}{2500}$ second edition 1897) 310 in that parish which lands adjoin the eastern side of the road numbered on the said map 309 in that parish and the northern side of the Kelvedon Tiptree and Tollesbury Light Railway of the Company:

(D) In the parishes of Elmstead and Alresford in the rural district of Tendring a strip of land adjoining and on the north-east side of the Company's Wivenhoe and Brightlingsea branch railway and a strip of land adjoining and on the south-west side of the said branch railway:

In the county of Suffolk (Eastern Division)—

Lands in the parish of Parham in the rural district of Plomesgate adjoining and on the north-east side of the station yard of the Company's Parham Station:

In the Isle of Ely and county of Cambridge—

Lands in the parish of Ely Trinity in the urban district of Ely adjoining and on the south side of the Shippea Hill Station of the Company and the railway of the Company immediately westward of that station:

Provided that the holding and user by the Company of the lands (B) in the parish of Leyton above described shall be subject and without prejudice to the provisions of a certain instrument in writing dated the twentieth day of January one thousand nine hundred and five and made between the Right Honourable Henry Arthur Mornington Earl Cowley of the first part the Right Honourable Sir Francis Leveson Bertie and Andrew Alfred Collyer-Bristow of the second part the Company of the third part and the urban district council for the district of Leyton of the fourth part.

35. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Company after giving ten days notice to

Correction of errors &c. in deposited plans and books of reference.

A.D. 1906. — the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall also be deposited with the clerk to the district council for the urban district or to the clerk to the parish council of the parish in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands or easements or rights in and over the same as the case may be and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

36. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Persons under disability may grant easements &c.

37. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Diversion of footpath.

38.—(1) The Company may divert in the manner shown on the deposited plans the footpath in the parish of Teversham in the rural district of Chesterton in the county of Cambridge leading from Cherry Hinton along the northern side of the railway of the Company into the Fulbourn Old Drift between a point fifteen chains measured in a westerly direction along the said railway from the level crossing thereof over the Fulbourn Old Drift aforesaid and the junction of the said footpath with the said Fulbourn Old Drift and subject to the provisions of this Act the

Company may stop up and discontinue for traffic the said footpath between such points respectively : A.D. 1906.

Provided that such stopping up shall not take place until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use.

(2) Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the portion of footpath to be so stopped up is situate seven days notice in writing of their intention to apply for the same.

(3) As from the date of the said certificate all public rights of way over or along the said portion of footpath shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the said portion of footpath stopped up as far as the same is bounded on both sides by lands of the Company.

(4) The new footpath shall unless otherwise agreed when made and completed be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portions of the existing footpath now devolves.

39. The Company shall abandon the construction of so much of the widening (No. 2) authorised by the Act of 1899 as lies between the point in the parish of Edmonton shown on the deposited plans referred to in the Act of 1899 as indicating three miles and four furlongs from the commencement of the said widening and the termination of the said widening (including the work (G) described in section 4 of the Act of 1900) and all powers and obligations conferred and imposed upon the Company by the Act of 1899 as amended by subsequent Acts with respect to the taking of lands and construction of works in the said urban districts of Enfield and Cheshunt and the said parishes of Wormley Broxbourne and Hoddesdon (urban) for or in relation to the said widening (No. 2) (including the said work (G)) or otherwise in connexion therewith respectively shall cease. Abandonment of portion of widening &c.

40. The abandonment by the Company under the authority of this Act of the aforesaid portion of the said widening and works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the Compensation for damage to land by entry &c. for purposes of works abandoned.

A.D. 1906. — nature of the soil or setting out of the line of work and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Act of 1899 as amended as aforesaid.

Compensation to be made in respect of works abandoned.

41. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portion of the widening and works authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Saving rights under agreement &c.

42. Notwithstanding anything in this Act contained or the abandonment of the aforesaid portion of the widening (No. 2) authorised by the Act of 1899 the agreement made the twenty-ninth day of November one thousand eight hundred and ninety-nine between the county council of the administrative county of Hertford the rural district council of Epping Horace James Smith-Bosanquet Ralph Charlton Palmer and Archdale Villiers Palmer and the Company which agreement is scheduled to and was confirmed by the Act of 1900 shall remain in force and be binding on the parties thereto and all the rights powers and obligations of the respective parties to the said agreement under that agreement and under sections 7 8 9 16 and 17 of the Act of 1900 as amended by subsequent Acts shall continue in force and have effect and all works and things to be done under the said agreement and sections 7 and 17 of the Act of 1900 shall forthwith be proceeded with and shall be prosecuted with all due despatch by the respective parties who in accordance with the terms of the said agreement and sections 7 and 17 of the Act of 1900 are authorised or required to do the same in accordance with the plans sections and specifications which have been agreed

as provided by the said agreement or such modified plans sections and specifications as may be agreed between the necessary parties and so that the same shall be completed not later than the thirtieth day of July one thousand nine hundred and eight. A.D. 1906.

43. The bridge to be constructed by the Company under subsection (1) of section 23 of the Act of 1899 for carrying Angel Road over the widening (No. 2) authorised by that Act shall be completed by the Company in accordance with the provisions of that section within two years from the date of the passing of this Act. As to bridge in Edmonton.

44.—(1) The periods now respectively limited for the completion of the following works namely:— Extending time limited for completion of works authorised by former Acts.

(A) The widening authorised by section 5 subsection 3 (A) of the Great Eastern Railway (General Powers) Act 1898 (in this section called “the Act of 1898”) of the Company’s siding or line of rails and of the bridge over the River Orwell mentioned respectively in that subsection; and

(B) The works (widening of bridge and additional line or lines of rails) authorised by section 5 subsection 3 (c) of the Act of 1898;

are hereby further extended for a period of three years from the first day of July one thousand nine hundred and six; and

(2) The period now limited for the completion of the following work namely:—

(c) The laying down of an additional line or lines of rails authorised by section 4 subsection (D) of the Great Eastern Railway Act 1902;

is hereby extended for a period of one year from the twenty-third day of June one thousand nine hundred and seven.

45.—(1) The period now limited by the Great Eastern Railway (General Powers) Act 1904 (in this section called “the Act of 1904”) for the compulsory purchase of the following lands namely:— Extension of time for compulsory purchase of lands authorised to be acquired by former Acts.

(A) The lands required for or in connexion with the covering over with a girder or girders or an arch or arches of (1) Vallance Road (2) Hemming Street (formerly known as Arundel Street) and (3) Brady Street described in and authorised by section 31 of the Act of 1900; and

A.D. 1906.

(B) Lands houses and buildings in the parish of St. Matthew Bethnal Green in the county of London authorised to be acquired by section 31 subsections (A) (B) (C) (D) and (E) of the Act of 1900;

is hereby further extended for a period of two years from the thirtieth day of July one thousand nine hundred and seven; and

(2) The period limited by the Act of 1904 for the compulsory purchase of the following lands namely:—

The lands houses and buildings in the parish of St. Mary Stoke in the county borough of Ipswich in the county of Suffolk being the lands (A) and (B) in that parish described in and authorised to be acquired by section 10 of the Great Eastern Railway (General Powers) Act 1901;

is hereby further extended for a period of two years from the twenty-sixth day of July one thousand nine hundred and six.

Power to
apply exist-
ing funds.

46. The Company may raise and apply for or towards any of the purposes of this Act to which capital is properly applicable any money which they are authorised to raise by any other Act or Acts and which may not be required for the special purposes (if any) for which that money was authorised to be raised.

Power to
Mid-Suffolk
Light Rail-
way Com-
pany to apply
funds.

47. It shall be lawful for the Mid-Suffolk Light Railway Company to pay to the Company any expenses which the Company have incurred or may incur in acquiring land or constructing works on the west side of the Haughley Station of the Great Eastern Railway for the accommodation of traffic destined for or coming from the railways authorised by the Mid-Suffolk Light Railway Order 1900 if and so far as the Mid-Suffolk Light Railway Company are not already authorised by that Order to pay the same and the Mid-Suffolk Light Railway Company may apply to that purpose any funds or moneys which they have raised or are authorised to raise.

Provision as
to general
Railway
Acts.

48. Nothing in this Act contained shall exempt the Company or their undertaking from the provisions of any general Act relating to railways or to the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by any Act relating to the Company.

Expenses of
Act.

49. The costs charges and expenses preliminary to and of and incidental to the preparing and applying for and the obtaining and passing of this Act shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act. A.D. 1906.

I.—RATES ON PERSONS USING THE PIER.

	s.	d.
For every passenger or other person who shall land on the pier from or embark from it on board of any vessel for each time any sum not exceeding	1	0

II.—RATES ON PASSENGERS' LUGGAGE BICYCLES &c. LANDED SHIPPED OR TRANSHIPPED AT THE PIER.

	s.	d.
For every trunk portmanteau box parcel or other package within the description of luggage and not borne by passengers not exceeding 84 pounds	0	6
Over 84 pounds and not exceeding 224 pounds	1	0
And for every 20 pounds weight in addition	0	1
For every bicycle tricycle or other similar vehicle	0	4

III.—RATES ON VESSELS USING THE PIER.

	Not exceeding per Ton Register.	s.	d.
For every vessel under the burden of 15 tons	0	6	
For every vessel of the burden of 15 tons and over	1	0	
All boats entirely open landing or taking on board passengers or goods each	0	6	

IV.—RATES ON GOODS AND MINERALS ANIMALS AND THINGS SHIPPED UNSHIPPED TRANSHIPPED RECEIVED OR DELIVERED AT THE PIER.

The classification is that annexed to and the Parts are the Parts of the Schedule to the Great Eastern Railway Company (Rates and Charges) Order 1891.

Goods and minerals included in Class	A	B	C	1	2	3	4	5	s.	d.
	-	-	-	-	-	-	-	-	0	6
"	"	"	"	"	"	"	"	"	0	9
"	"	"	"	"	"	"	"	"	1	0
"	"	"	"	"	"	"	"	"	1	6
"	"	"	"	"	"	"	"	"	2	0
"	"	"	"	"	"	"	"	"	3	6
"	"	"	"	"	"	"	"	"	4	0
"	"	"	"	"	"	"	"	"	5	0